

25STCV01356 25STCV01356

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 25STCV01356 Hearing Date: August 5, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 5, 2026

Case Name: Kunze v. Carpenter & Zuckerman, LLP, et al.

Case No.: 25STCV01356

Matter: Motion to Compel Further Responses

Moving Party: Plaintiff Domanic Kunze

Responding Party: Defendant Paul Zuckerman

Notice: OK

Ruling: The Motion is denied without prejudice.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On January 17, 2025, Plaintiff Domanic Kunze filed a complaint for (1) legal malpractice, (2) breach of fiduciary duty, and (3) breach of contract.

On April 16, 2025, Plaintiff filed a First Amended Complaint ("FAC"). Plaintiff alleges that he lost his arm in an injury but that his former attorneys negligently settled his personal injury suit for only \$21,402.49.

Plaintiff now seeks to compel Defendant Paul Zuckerman to provide further responses at deposition. The questions are discussed in generalized categories, and a separate statement was not provided. The categories are: (1) attorney departures from Carpenter & Zuckerman, (2) the applicable standard of care, (3) Defendant's "contemporaneous mental impressions", and (4) the defenses of the First Amended Answer.

The Court cannot provide an appropriate ruling without a separate statement. Therefore, the Motion is denied without prejudice.

The Court, however, will make a few notes. Questions about attorney departures are relevant, but only to the extent pertinent to Plaintiff's actual file. Questions about other malpractice lawsuits are typically not appropriate.

Questions like "what does the duty of candor mean to you?" are inappropriate because they seek expert opinions. Any question that pertains to the standard of care should be as applied to the facts that the deponent experienced.

Also, it is not appropriate to lodge speaking objections during a deposition unless those objections pertain to (1) a privilege or (2) questions that are tantamount to harassment. "Taken as a whole, [the provisions of Code Civ. Proc. § 2025.460] clearly contemplate that deponents not be prevented by counsel from answering a question unless it pertains to privileged matters or deposing counsel's conduct has reached a state where suspension is warranted. The fact that suspension is available only where an interrogation into improper matters reveals an underlying purpose to harass, annoy, etc., indicates that witnesses are expected to endure an occasional irrelevant question without disrupting the deposition process." (Stewart v. Colonial Wester Agency, Inc. (2001) 87 Cal.App.4th 1006, 1015.) Objections as to relevancy during a deposition are "unnecessary." (Code Civ. Proc. § 2025.460.)

The parties are to meet and confer.

The Motion is denied without prejudice.

No sanctions.

Moving party to give notice.